

**PURCHASE ORDER-STANDARD TERMS AND CONDITIONS
FOR COMMERCIAL SUPPLIES and SERVICES**

Unless otherwise specified, the following terms and conditions shall apply to purchase orders between GREENTECH (Buyer) and supplier (Seller)

1. AGREEMENT TO PURCHASE/SELL

Pursuant to this Purchase Order, Buyer agrees that it shall purchase the Goods from Seller upon the terms and conditions and at the prices set forth herein, Seller, by signing this Purchase Order, undertakes the binding obligation to sell the Goods to Buyer in accordance with the terms and conditions hereof. No other terms or conditions of the purchase order shall be binding upon the parties unless actually agreed to in writing by authorized representatives of each of the parties herein.

2. BUYER'S CUSTOMERS AND VENDORS

If Seller is a subcontractor to Buyer under a Buyer prime contract, Buyer shall be responsible for all liaisons and communication with Buyer's customer and Buyers' other vendors for the term of this Purchase Order. Seller shall not communicate with Buyer's customer or Buyer's other vendor regarding the Purchase Order unless authorize to do so by Buyer. This clause does not affect the rights of any government entity to initiate communicate with the Seller regarding this Purchase Order, and the Seller shall not be consider in breach of this clause under such circumstances. The Seller shall report such communication to the Buyer as soon as practicable

3. INFORMATION DISCLOSED TO BUYER

Any information or knowledge Seller discloses to Buyer regarding this order shall not deemed confidential or proprietary unless expressly agreed upon by the parties in writing. Any such unpatented information or knowledge shall be acquired by Buyer free of any restrictions

4. PUBLIC RELEASE OF INFORMATION

No public release of information news release, announcement, advertisement denial or confirmation of this order or the subject matter hereof, shall be made without Buyer's prior written approval

5. SPECIFICATION

All goods/materials/Services shall be of the description, quality and quantity set forth in the Purchase Order and, in the absence of either any other specification or of any over-riding requirement under the provisions of the Inspection Clause hereof, all goods/materials shall be best of their respective kind and shall comply with all relevant specifications and shall in all cases be to the reasonable satisfaction of the Buyer for the purpose of the contract Works or other purpose as described in or to be inferred from the Purchase Order .

The description, quality, or quantity of the goods/materials shall only be changed by written instruction from the Buyer. Any samples approved by the Buyer shall be held to be representative in all respects of the goods/materials offered. Approval of any sample shall not relieve the Seller from any requirements set forth in the Purchase Order.

6. DRAWINGS

Where the Seller is required to carry out any detailed design work or prepare additional specifications or working drawings the Seller shall submit such documentation to the Buyer by the date or dates stated in this purchase order. Where such documentation is to be provided to the Buyer, the Seller shall not commence manufacture and/or supply of the goods/material until a written Notice to proceed is received from the Buyer. Notwithstanding submission of documentation to the Buyer and receipt of any instruction to proceed, the Seller shall retain full responsibility of the supply of goods/materials in accordance with the provision of this purchase order and the Buyer shall in no way be deemed to have assumed responsibility for accuracy of the documentation. Any drawing sketches, or detailed specifications furnished under the Purchase Order shall become the property of the Buyer

7. BUYER'S PROPERTY AND INFORMATION

Buyers' property, such as drawings, specifications, data and the like, furnished to Seller for performance of the work shall remain the property of Buyer, shall be considered private and confidential Buyer information, and shall not be used by Seller for its own purposes or given to a third party without the express written consent of the Buyer. Any designs, drawings, dies, molds, tooling, technical data/information, materials, equipment, etc, that Seller makes or buys from others for producing the supplies/services and charges to Buyer's account shall become Buyer's property immediately upon manufacture or procurement. When practical, all such Buyer property shall be marked as belonging to the Buyer shall be held by Seller on consignment at Seller's risk and shall be used exclusively to perform the work requirement of this Purchase order. Upon order completion, all Buyers' furnished property shall be returned to the Buyer in the same condition as received, allowing for reasonable wear and tear except to the extent that the property has been incorporated into supplies delivered or consumed in the performance of the work. With the prior authorization of the Buyer and Buyer's Customer, the Seller may be

permitted to use any Buyer furnished, Government owned property/information to furnish supplies or services for direct sale to the Government on a noninterference basis with this Purchase Order.

8. GOVERNING LAW AND TRIAL

The validity, enforceability, and interpretation of this Order shall be decided and governed by the laws of the Commonwealth of Virginia and, where applicable by virtue of preemption, under the laws of the United States of America.

Both parties unless prohibited by law hereby acknowledge, agree, and consent to personal jurisdiction and venue in the courts of the Commonwealth of Virginia or any federal court located in Virginia if any suit is brought under the terms of or relating to this Order.

The Supplier hereby knowingly, voluntarily and intentionally waives (to the extent permitted by applicable U.S. law) any right it may have to a trial by jury of any dispute arising under or relating in any way to this order and agrees that any such dispute may, at Company's option, be tried before a judge sitting without a jury.

9. TERMS OF PAYMENT & INVOICING

The Buyer shall pay for the goods/materials and where appropriate for any other services to be provided under this Purchase Order at the price set out in the Purchase Order or such price as shall be ascertained from the terms of the Purchase order. Unless otherwise specifically stated on the face of the Purchase Order, such payment shall be made within 30 days of receipt of a proper invoice and delivery of the goods/materials/services, whichever is greater. If Sellers invoice requires correction the time of payment will be calculated from the date of receipt by the Buyer of Seller's corrected invoice as if such date of receipt were date of delivery.

Itemized invoices for work performed and accepted under this Purchase Order must be submitted in duplicate, no more often than once per month to:

GREENTECH
25214 LARKS TER.
CHANTILLY, VA, 20152

The original marked for the attention of the Accounting Supervisor.

The invoice must include the vendor's name, date, Purchase Order/subcontract number, modification number (as applicable) inclusive period of invoiced services, and a detailed breakdown by location, of all relevant items of the schedule of prices.

Payments over US \$5,000 whether an individual invoice or multiple invoices received during a payment cycle shall be made in US dollars by wire transfer directly to the vendor's designated account in US Dollars. Currency exchange variances and any fees that may be charged by the vendor's bank will be borne by the vendor. Vendor payments under \$5,000 will be made by local currency check in accordance with the terms of the Purchase Order.

10. DELIVERY REQUIREMENTS

The goods/materials shall be delivered in accordance with requirements set forth in the Purchase Order. The time and place of delivery are of the essence for this contract. However, if only by reason of force majeure, the Seller shall have been delayed or impeded in the delivery of the goods/material and where such delay or impediment occurred before the time fixed for delivery and provided that the Seller shall without delay have given to the Buyer notice in writing of his claim for any extension of time, the Buyer may as soon as thereafter as practicable grant in writing to the Seller such extension of the time fixed by the purchase order as may be reasonable.

11. CHANGES

The Buyer may at any time, exclusively by a written order signed by its authorize representative, and without notice to sureties make changes within the general scope of this Purchase Order including but not limited to the (i) specific model of Goods ordered hereunder (ii) method of shipment or packing (iii) place of delivery (iv) delivery schedules. If any such change causes an increase or decrease in the cost of or the time required for performance of this Purchase Order, an equitable adjustment shall be made in the contract price or delivery schedule or both and this Purchase Order shall be modified in writing accordingly. Any claim by Seller for readjustment under this paragraph must asserted in writing to the Buyer's Purchasing Department not later than ten (10) days after the date of receipt by Seller of the written change authorization or within such extension as the Buyer may grant in writing. Such claim shall be in the form of a complete change proposal fully supported by whatever factual information including cost/pricing data that is reasonably requested by the Buyer. Pending any such adjustment, Seller will diligently proceed with this Purchase Order as modified by the Buyer's written order.

12. STOP-WORK ORDER

Buyer may, at any time, by written notice to Seller, stop all or any part of the work here under for up to ninety (90) days. Upon receiving a stop-work order, Seller shall immediately comply with its terms and take all reasonable steps to avoid incurring any additional costs allocable to such work. If the stop work order results in an increase in price or schedule, the Seller must submit a claim for equitable adjustment within thirty (30) days after the resumption of the works.

13. INSURANCE

The Seller shall at all times be responsible for insuring the goods/materials to their full replacement value until delivery to and

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acceptance by the Buyer. The Seller shall, upon request provide to the Buyer proof of the existence of an insurance policy.

14. TITLE

Except as otherwise expressly provided, the Seller warrants to the Buyer that the Seller has or shall at the time of delivery and acceptance of the goods/materials, absolute title free of any encumbrances. The ownership of the goods/materials shall pass to the Buyer at the time of payment or the time of delivery and acceptance by the Buyer, whichever shall be earlier. Except as otherwise provided for under the warranty/Guarantee clause, the risk of the loss or damage thereto shall pass from the Seller to the Buyer upon completion of delivery and acceptance by the Buyer.

15. WARRANTY/GUARANTEE

Without limiting the Buyer's rights at law, but in addition thereto if any goods/materials do not meet the specification or the requirements of the Purchase Order or are defective or damaged or any defect or fault of any goods/materials arises at any time within 12 months from the date the goods/materials are placed in use or operation, the Seller shall at his own expense promptly make alterations, repairs and replacements as are necessary so that the said goods/materials conform to all the Specifications and are to the Buyer's entire satisfaction. If the fault or failure to function properly cannot be corrected as set forth above, the faulty goods/materials shall be removed by or at the expense of the Seller and the Seller shall, without cost to the Buyer, promptly supply satisfactory replacements which shall fulfill the Specifications and intent of the Purchase order and which shall be installed completed by or at the expense of the Seller.

16. INSPECTION, TESTING, AND ACCEPTANCE

The Seller agrees that –
The cost of any inspections and test that shall be made by the Seller to ensure that all requirements as set out to the standard/code to which the goods/materials are to conform and as required by the provision of this goods/materials are to confirm and as required by the provisions of this Purchase Order, shall be borne by the Seller. All goods/materials shall be open to inspection by the Buyer and/or his agent's at all reasonable times and places both before, during, and after manufacture.

- a) Good purchased and delivered pursuant to this Purchase Order are also subject to inspection and testing by the Buyer at the destination to which Seller is obligated hereunder to deliver the Goods. Such inspection and testing shall take place within a reasonable period after Seller's delivery of the Goods. Buyer shall have the absolute right to reject in whole or in part any tender of Goods which is non-confirming as to the quality or quantity. In the event such a non-conforming tender is made, Buyer shall so advise Seller and shall be entitled to all remedies as provided by the law, and in addition hereto, shall have the right to do any or all of the following (i) to hold such non-conforming goods for fifteen days (15) days at Sellers risk and expense, pending a determination to accept or reject any or all thereof (ii) to return same to Seller at Buyer's election and at Sellers risk and expense for replacement or correction (iii) to accept same subject with an equitable price reduction (iv) to replace or correct same and charge to Seller the cost occasioned to Buyer thereby and/or (v) to recover by offset or otherwise any and all expenses, costs, price reduction, and damages paid, incurred or suffered by Buyer as a result of such holding, return, replacement, correction, reductions, or rejections of non-conforming Goods.
- b) Such inspection or failure to inspect by the Buyer or his agent shall not relieve the Seller of any responsibility nor liability with respect to the goods/materials nor be interpreted in any way to imply acceptance thereof by the Buyer.

17. PATENTS

The Seller shall fully indemnify the Buyer against any action, claim, demand, costs, charges, and expenses arising from or incurred by reason of any infringement of any patent design or trade name and against all costs and damages which the Buyer may incur in any action for such infringement or for which Buyer may become liable in any such action.

18. UNAUTHORIZED CHARGES

Charges for such additional expense as preparation, packing, boxing, carting, freight, insurance or special services of any kind will not be paid by the Buyer unless specifically authorized in the Purchase Order.

19. TERMINATION

Without limitation to any other remedy the Buyer may have, the Buyer may terminate the agreement forthwith in the event that

- (a) Seller fails to comply with any of the provisions of the Purchase Order, or
- (b) Seller becomes bankrupt or if its company is put into receivership or liquidation

Without prejudice to the above, the Buyer may elect to terminate the Purchase Order in whole or in part by written notice to the Seller. In such event, the Buyer shall make payment to and the Seller shall accept payment of all costs incurred prior to such termination directly related to the Purchase Order under recognized accounting practices together with a reasonable allowance for

overhead and profit on work performed less any disposal or retention value, provided that the Seller has submitted satisfactory documentary evidence as to the precise charges and costs incurred.

20. TERMINATION FOR CONVENIENCE

This order may be terminated in whole or part at any time for the convenience of JV or its client. Immediately on notification, Seller shall stop work and take actions as may be required by such notice. The JV shall pay Seller all reasonable costs, plus an equitable profit unless termination is for Seller's failure to meet purchase order requirements.

21. SUPPLIER, AGENTS, OR EMPLOYEES

The Seller accepts full responsibility for all employees and agents employed in carrying out this Purchase Order and shall indemnify and save the Buyer harmless from all losses, damages, claims, suits, actions and proceedings arising out of injuries, death or damage to any person or property arising out of obligations to be performed under this Purchase Order.

22. ASSIGNMENT AND SUBCONTRACTING

(a) Neither this Order nor any interest herein may be assigned in whole or in part, by either party without the prior written consent of the other party except that without securing such prior consent, either party shall have the right to assign this order to any successor, or such party by the way of merger or consolidation or in the acquisition of substantially all of the business and assets of the assigning party relating to the subject matter of this Purchase Order. This right shall be retained provided that such successor shall expressly assume all of the obligations and liabilities of the assigning party under this Purchase Order and that the assigning party shall remain liable and reasonable to the other party hereto for the performance and observance of all such obligation.

(b) Notwithstanding the foregoing, any amounts due or to become due hereunder may be assigned by the Seller, provided that such assignment shall not be binding upon the Buyer unless and until the assignment is received by the Buyer.

(c) Neither all nor substantially all of this Purchase Order may be further sub-contracted by Seller without prior written consent of the Buyer

23. WAIVER OF RIGHTS

Failure of either party to insist on performance of any provision of this order shall not be construed as waiver of that provision or any waiver of Buyers' or Seller's right to require compliance with such provision in any later instance. If any provision of this order is found to be illegal or unenforceable under law that provision shall be deleted, however, all other provisions of this order shall not be affected thereby, and shall remain in full force and effect

24. ENTIRE AGREEMENT

This purchase order constitutes the entire agreement between Buyer and Seller regarding this procurement and supersedes all previous written or oral agreements and commitments. No terms or conditions of sale set forth in Seller's quotation or acknowledgement shall be included as a part hereof, nor shall any prior course of dealing, custom, or usage in the trade supersede or modify any Purchase Order provision Any subsequent additions, deletions or modifications to this agreement shall not be binding upon the parties unless same are mutually agreed upon and incorporated herein in writing.

**U.S. GOVERNMENT TERMS AND CONDITIONS FOR
ACQUISITION OF COMMERCIAL SERVICES IN A
CONTINGENCY ENVIRONMENT**

This subcontract or order is placed using the policies and procedures of the Federal Acquisition Regulation Part 12 – ACQUISITION OF COMMERCIAL ITEMS. Clauses are used in both solicitations and contracts before and after award. Provisions, on the other hand, are used only in solicitations and apply only before subcontract award. Clauses and provisions hold the contractor accountable for fulfilling the Government's purpose and, at the same time, provide the Government with substantial rights to monitor performance, inspect, and accept products and services. The Government has the right under these clauses to take action when performance is unsatisfactory.

Similarly, these same clauses and provisions hold the Government accountable and allow contractors to take action against the Government. These clauses are contained in **Part 52** of the FAR. **FAR 52.101** describes how to use **Part 52, Solicitation Provisions and Contract Clauses**. **FAR 52.2** contain the texts of all FAR provisions and clauses.

The Federal Acquisition Regulations (FAR) and Department of Defense (DOD) FAR Supplement (DFARS) clauses set forth below are incorporated in the subcontract/order. Wherever necessary to make the context of the clauses applicable to this subcontract/order, whether incorporated by reference or in full text, the term "Contract" shall mean this "subcontract," the term "contractor" shall mean "Subcontractor," the term "disputes" shall mean "claims," and the terms "Government", "Contracting Officer" and equivalent phrases shall mean "Company," and "Company's Contract Manager," respectively, except the terms "Government"

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and "Contracting Officer" do not change (1) in the phrases "Government Property," "Government-Owned Equipment"; (2) when a right, act, authorization, or obligation can be granted or performed only by the Government or the Prime Contract Contracting Officer or his/her duly authorized representative; (3) when access to proprietary financial information or other proprietary data is required; (4) when title to property is to be transferred directly to the Government; and (5) where specially modified as noted below. Upon request the Company will make the full text of the clauses available. Further, wherever a delivery date or submittal time span is specified in one of these clauses, the Subcontractor shall furnish the item(s) to GREENTECH at least seven (7) calendar days prior to the due date. The Company shall provide the full text of any clause(s) upon request. Alternatively, the Subcontractor may obtain copies of these clauses on the Internet at: <http://farsite.hill.af.mil/>.

24. FAR 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL ITEMS (JUN 2008) (DEVIATION)

(a) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (a) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, and does not contain the clause at 52.215-2, Audit and Records – Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(b) (1) Notwithstanding the requirements of any other clause in this contract, the Contractor is not required to flow down any FAR clause, other than those in paragraphs (i) through (ii) of this paragraph in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause.

(i) 52.222-50, Combating Trafficking in Persons (Aug 2007) (22 U.S.C. 7104(g)). Flow down required in accordance with paragraph (f) of FAR clause 52.222-50.

(ii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (Feb 2006) (46 U.S.C. Appx 1241(b) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the contractor may include in its subcontracts for commercial items a minimal number of additional clauses necessary to satisfy its contractual obligations.

25. FAR 52.246-2 INSPECTION OF SUPPLIES -- FIXED-PRICE (AUG. 1996) (BY REFERENCE)

26. FAR 52.246-20 WARRANTY OF SUPPLIES OF A NON-COMPLEX NATURE (JUN 2003) (BY REFERENCE)

27. DFARS 252.222-7006 COMBATING TRAFFICKING IN PERSONS (OCT 2006) (BY REFERENCE)

28. DFARS 252.225-7043 ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (MAR 2006) (BY REFERENCE)

The Contractor shall-

(a) provide, before commencing performance under this contract, such workers' compensation insurance or security as the Defense Base Act (42 U.S.C. 1651, *et seq.*) requires and

(b) continue to maintain it until performance is completed. The Contractor shall insert, in all subcontracts under this contract to which the Defense Base Act applies, a clause similar to this clause (including this sentence) imposing upon those subcontractors this requirement to comply with the Defense Base Act.

30. Required training for Site visiting/on-site personnel.

FAR clause 52.225-19 "Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission Outside the United States" paragraph (e)(2)(v) requires that all contractor personnel receive personal security training. The High Threat Security Overseas Seminar for Contractors (HTSOS-C) course described below meets this requirement unless the contract requires more intensive security courses.

The Government is providing a High Threat Security Overseas Seminar for Contractors (HTSOS-C) course to the contractor for use in training all U.S. citizens and Third Country National (TCN) personnel assigned to specified high risk locations. The Contractor shall provide this training course to U.S. Citizens and TCN employees expected to be at that location for more than one (1) day (see exceptions below). The training is available in several languages and maybe conducted individually or in a classroom setting. The CO will advise the contractor on how to obtain the electronic course at time of award. The training must be taken by the employee in pre-deployment or within 15 days of being assigned to the hazardous location and every five years thereafter, or upon transfer to a new contract.

Exceptions: Personnel who have taken a more intensive State Department approved security course such as the FSI course CT650, Foreign Affairs Counter Threat (FACT) course or a Contractor-obtained equivalent FACT course, (if the course is approved by the CO in writing) will be considered to have met this requirement.

The Contractor shall file proof of each person trained in their Contractor-maintained personnel record and it must be available for inspection by the CO or COR upon demand. Since the training is good for five years, a training certificate should be provided to each trainee to use as proof of training for future positions.

The following locations applicable to this contract have a high safety risk and require the HTSOS-C training:

List of posts/countries: ALL

31. ARBITRATION

1. Any controversy or claim between the Contractor and the Subcontractor arising out of or related to this Subcontract, or the breach thereof, shall be settled by arbitration in accordance with the Construction Industry Arbitration Rules of the American Arbitration Association currently in effect and shall be governed by the laws of the Commonwealth of Virginia in the United States of America and shall be conducted by one or more arbitrators to be appointed in accordance with such Rules. The place of arbitration shall be in Springfield, Virginia in the United States of America.

2. The Contractor and the Subcontractor agree that any award rendered by the arbitrators shall be final and binding on them and judgment may be entered upon in accordance with applicable law in any court having jurisdiction thereof in the United States.

3. The arbitrator(s) shall award to the prevailing party, if any, as determined by the arbitrator(s), all of its costs and fees. "Costs and fees" means all reasonable pre-award expenses of the arbitration, including the arbitrator(s)' fees, administrative fees, travel expenses, out-of-pocket expenses, such as copying and telephone, court costs, expert witness fees, transcripts, translation and attorneys' fees.

4. It is agreed if persons claiming under or through the Subcontractor shall bring legal action against the Contractor or shall file a demand for arbitration or bring any other action against the Contractor with respect to this Subcontract and Contractor shall prevail in such matter, then the Subcontractor shall pay to the Contractor, in addition to any amounts awarded in said litigation or arbitration, the Contractor's reasonable costs, out-of-pocket expenses, and attorneys' fees incurred in connection with such legal action and/or arbitration.